

26STCP01510 26STCP01510

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCP01510 Hearing Date: August 4, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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KEVIN LIH,

Petitioner(s),

vs.

DAVID

SLAYTON, et al.,

Respondent(s).

Case No.:

26STCP01510

Hearing Date:

August 4, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondents David Slayton ("Slayton"), in his official capacity as Executive Officer and Clerk, Cynthia Soto (erroneously sued as "Cindy Soto") ("Soto"), in her official capacity as Court Services Supervisor, Melissa Aguayo ("Aguayo"), in her official capacity as Court Services Assistant III, and Charlotte Ramos ("Ramos"), in her official capacity as Court Services Assistant III (collectively, "Respondents") demur to petitioner Kevin Lih's ("Petitioner") First Amended Complaint and Petition ("FAP").

The demurrer is sustained without leave to amend.

I.

Factual Allegations

Petitioner's FAP alleges in pertinent part as follows:

In Lih v. Rinoie, LASC case no. 25STCV33683 ("Prior Action"), the Prior Action defendants, real parties Chugo Eddie Rinoie ("Rinoie") and Lili Shih ("Shi") (collectively, "RPIs") in this action, failed to timely file any responsive pleading. (FAP, ¶ 2.) Petitioner then submitted a CV-100 Request for Entry of Default for each defendant. (FAP, ¶ 2.) Based on a filed Declaration of Demurring Party in Support of Automatic Extension, Respondents refused to enter default on Petitioner's request and on subsequent requests and discussions. (FAP, ¶¶ 2-4, 6.)

II.

Procedural History

On April 14, 2026, Petitioner filed his petition. Proofs of service filed May 7, 14, and 22, 2026 show Petitioner served the summons and petition on Slayton by substituted service on May 14, 2026, on Soto, Aguayo, and Ramos by substituted service on May 7, 2026, and on real party Rinoie by personal service on May 6, 2026. There is no proof of service for Shih. On June 5, 2026, Respondents filed their demurrer to the petition and their answer to the petition. On July 22, 2026, Petitioner filed his opposition. On July 28, 2026, Respondents filed their reply.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain ("uncertain" includes ambiguous and unintelligible); (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct; (h) No certificate was filed as required by Code of Civil Procedure ("CCP") section 411.35 or (i) by CCP section 411.36. CCP § 430.10. Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

IV.

Analysis

Respondents demur to the petition on the grounds that (1) the FAP is barred by absolute quasi-judicial immunity; (2) the Court lacks subject matter jurisdiction; (3) the FAP is moot; (4) the FAP is barred by the Government Claims Act; and (5) the FAP fails to state facts sufficient to constitute a cause of action.

1.

Jurisdiction

The court must sustain a demurrer where the court does not have subject matter jurisdiction. (CCP § 430.10(a).) The principle of subject matter jurisdiction relates to the inherent authority of the court involved to deal with the case or matter before it. (*Barry v. State Bar of California*

(2017) 2 Cal.5th 318, 324) Without subject matter jurisdiction, a trial court has no power to hear a case. (Ibid.)

Only this state's Supreme Court and the courts of appeal may review proceedings in trial court. (CCP § 43.) "One department of the superior court cannot enjoin, restrain, or otherwise interfere with the judicial act of another department of the superior court. ... A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned." (Glade v. Glade (1995) 38 Cal.App.4th 1441, 1450; Silverman v. Superior Court (1988) 203 Cal.App.3d 145, 151 ["Glade"].) "Even between superior courts of different counties, having coequal jurisdiction over a matter, the first court of equal dignity to assume and exercise jurisdiction over a matter acquires exclusive jurisdiction." (Id. at 151.)

Petitioner and Respondents spend considerable effort arguing whether Glade, People v. Davis, (2014) 226 Cal.App.4th 1353 ("Mandamus or prohibition may be issued only by a court to another court of inferior jurisdiction"), and other cases prevent this Department of this Court from ordering Respondents to comply with a ministerial duty related to their judicial functions. The Court need not reach that issue to decide the matter at hand.

Respondents refused to enter default in the Prior Action against RPIs as Petitioner requested. (FAP, ¶¶ 2-4, 6.) Petitioner, seeking remedy, applied to the court in the Prior Action for an order directing Respondents to enter default. (FAP, Ex. A.) That department heard and ruled on Petitioner's application. (FAP, Ex. A.) This Department cannot affirm, reverse, or modify any judgment or order by that department. (CCP § 43; Glade, supra, 38 Cal.App.4th at 1450.)

Accordingly, this department lacks jurisdiction to hear the FAP.[1]

V.

Conclusion

The demurrer to the petition is SUSTAINED without leave to amend. Respondents are directed to file and serve a proposed judgment of dismissal within five court days of this order. An OSC re: dismissal is set for August 20, 2026 at 9:30 a.m. If a judgment of dismissal has been entered by

that date, the OSC will be taken off calendar.

Date: August 4, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Court takes judicial notice of the July 1, 2026 Minute Order in Los Angeles Superior Court case number 25STCV33683, the Prior Action. (Evid. Code §452 (d).) The Prior Action was apparently dismissed on that date; neither this Court nor the clerk can resurrect the dismissed Prior Action. Thus, even if this Court had jurisdiction to hear the instant petition, the dismissal of the

Prior Action renders the present petition moot. Because the Court lacks jurisdiction to hear the matter, the Court does not reach the parties' remaining arguments.